

caused by the settlement funding in two installments, no funds may be distributed to the *cy pres* beneficiary until ordered at the compliance hearing.

Assuming that Plaintiff can accommodate the paragraph above titled Settlement Distribution, the Court intends to **GRANT** the motion. Plaintiff submitted a Proposed Order and Judgment that will be modified to reflect the Court's ruling. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, December 13, 2027 at 8:30 a.m. in Department 63** for a hearing on compliance. Prior to the compliance hearing, Plaintiff is expected to provide evidence that the first round of class member settlement checks were mailed, that any checks uncashed after 180 days were either included in the second check or sent again, and the number of class members who still have uncashed checks 180 days from date of the issuance of the second checks along with the total for the uncashed checks. Plaintiff should also provide evidence of all other distributions including Class Counsel, Plaintiff, Phoenix, and the LWDA. Evidence shall be filed no later than December 3, 2027.

WELTY, ET AL. VS. REYES BARRERA, ET AL.

CASE NUMBER: 25CV-0208430

Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories, Set One: Plaintiff filed two discovery motions on August 3, 2026 that were both noticed for hearing today. On August 26, 2026, Plaintiff filed a Notice of Withdrawal as to the Motion to Compel Further Responses to Request for Production of Documents. The Court notes that attached to the Notice of Withdrawal, was a Notice of Withdrawal for this motion. Because the clerk is not able to separate documents, this motion was not formally withdrawn and is still on calendar today. Because it is apparent that Plaintiff is no longer seeking a ruling on this motion, absent an appearance by Plaintiff and a request otherwise, the Court will drop the matter from calendar.

WRIGHT, ET AL. VS. OROS BORJON, ET AL.

CASE NUMBER: 25CV-0208213

Tentative Ruling on Motion to Appoint Referee and Order Partition by Sale: Plaintiff Patricia L. Wright, Trustee of the Patricia L. Wright Trust DTD July 8, 2020 and Plaintiff Deborah Lee Hammerich, Trustee of the 2005 Amendment and Restatement of the 2000 Deborah Lee Hammerich Revocable Trust DTD September 28, 2020 move for partition by sale and appointment of a referee. Defendants Jose Fernando Oros Borjon and Ivonne Oros Borjon, Trustees of the Borjon Family Trust DTD January 19, 2019 filed a Response to the Motion.

An interlocutory judgment ordering partition by sale was entered on April 20, 2026. A hearing on fair market value (FMV) was held on July 10, 2026 and the Court found that the FMV is \$292,500. The Minutes from the July 10, 2026 hearing were served on all parties by mail on July 10, 2026 which served as the required notice under CCP § 874.317(a). The forty-five days have now elapsed with no party giving notice that they intend to buy out the other tenants. Because Plaintiffs have requested partition by sale, CCP § 874.317(d)(3) applies and the Court must send notice to all parties of the fact that no tenant provided notice of an intent to buy out and that the matter will proceed to partition under CCP §§ 874.318 and 874.320. Should this tentative ruling become final, the clerk is directed to serve today's minutes on the parties in order to constitute the required notice.

The property at issue is a single-family home. Therefore, partition in kind is not feasible and partition by sale will occur under CCP § 874.318(b). The Court finds that the sale shall be an open-market sale. CCP § 874.320(a). The list price shall be \$292,500. Pursuant to CCP § 874.320(b), absent an objection, the Court intends to appoint Drew Wahlund of Wahlund and Co. Realty as the disinterested real estate broker. Plaintiffs suggest setting the reasonable commission at no more than 5.5% of the sale price. As no contrary evidence has been provided by either party, the Court will set the commission at 5.5% absent argument otherwise.

Pursuant to CCP § 873.010(a), the Court shall appoint a referee to sell the property. The only proposed referee is Aaron W. Moore, who the Court knows to be a local attorney specializing in real estate law. There appears to